



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB -5 1993

DOT-E 10960

1. Hughes Space and Communications Company, Los Angeles, California, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a satellite equipped with four propellant fuel tanks, two contain residual amounts of a Division 6.1 material and two contain residual amounts of a Division 2.3 material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of residual amounts of dinitrogen tetroxide, liquefied, Division 2.3 and Methylhydrazine, Division 6.1, in specially designed fuel tanks by cargo aircraft. This exemption provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Hughes Space and Communications Company's application dated February 2, 1993 and supplemental information dated February 5, 1993 submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to preclude serious economic loss.

3. HAZARDOUS MATERIALS (Descriptor and class) Dinitrogen tetroxide, liquefied, Division 2.3, (UN-1067) and Methylhydrazine, Division 6.1, (UN-1244) in an Isopropanol solvent, Class 3, (UN-1219).

4. PROPER SHIPPING NAME (49 CFR 172.101). Dinitrogen tetroxide, liquefied or Methylhydrazine, as appropriate.

5. REGULATION(S) AFFECTED. 49 CFR Table 172.101, Column (9)(b), 173.244 and 173.314.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, and cargo aircraft only.

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7. SAFETY CONTROL MEASURES. The packaging prescribed is a satellite equipped with four specially designed, military specification, stainless steel fuel tanks. The packaging must contain no more than the residual amounts of dinitrogen tetroxide or methylhydrazine as prescribed in the exemption application. The satellite will be overpacked in an air-tight, aluminum container which will be purged with dry nitrogen gas prior to shipment.

8. SPECIAL PROVISIONS:

a. A copy of this exemption must be carried aboard the aircraft, and motor vehicle used to transport the package covered by this exemption.

b. The satellite will be accompanied by two Hughes personnel, one launch operations technician and one quality assurance engineer, to monitor loading, unloading, and securing of the satellite.

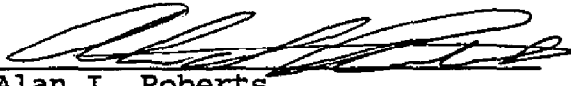
c. The satellite will be transported on a chartered Boeing 747, cargo only aircraft, owned and operated by American International Airlines. The shipment will originate in Kourou, French Guiana destined for Los Angeles Airport, Los Angeles, California. The satellite then will be transported across the highway to Hughes manufacturing site.

d. The outside of the package must be plainly and durably marked "DOT-E 10960."

9. REPORTING REQUIREMENTS. Any incident involving loss of the packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. February 10, 1993.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

FEB 5 1993

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590. Attention:
Exemptions Program.

Dist: FAA, FHWA